

The subject petition did not provide a metes and bounds legal description, nor was any verification provided.

Finally, for a mechanic's lien whose claim amount exceeds \$35,000, the verified petition must be filed as an unlimited jurisdiction case, not as a limited jurisdiction case. C.C.P. §86(a)(6) provides:

The following civil cases and proceedings are limited civil cases:

. . .

- (6) An action to enforce and foreclose, or a petition to release, a lien arising under Chapter 4 (commencing with Section 8400) of Title 2 of Part 6 of Division 4 of the Civil Code, or to enforce and foreclose an assessment lien on a common interest development as defined in Section 4100 or 6534 of the Civil Code, if the amount of the liens is thirty-five thousand dollars (\$35,000) or less. However, if an action to enforce the lien affects property that is also affected by a similar pending action that is not a limited civil case, or if the total amount of liens sought to be foreclosed against the same property aggregates an amount in excess of thirty-five thousand dollars (\$35,000), the action is not a limited civil case.

The mechanic's lien amount claimed in the recorded mechanic's lien was \$42,935.00. Thus, the court has no jurisdiction in this limited jurisdiction filing to grant any petition for release of this mechanic's lien.

For all of these reasons, this petition is denied, without prejudice to filing a proper and complete verified petition in an unlimited jurisdiction case.

DEBRA YANCY vs. 1527 SPRINGS ROAD, LLC; ET AL.
Case No. CU25-08880

Plaintiff's Motion to Compel Defendant's Further Responses to Special Interrogatories

TENTATIVE RULING

Plaintiff DEBRA YANCY moves to compel Defendant 1527 SPRINGS ROAD, LLC to further respond to two special interrogatories. Plaintiff's complaint in this matter alleges that she was an elder resident at Defendant's care home following a hip replacement surgery. Plaintiff alleges that Defendant's negligence resulted in Plaintiff suffering several falls and attendant severe injury. The two interrogatories at issue here seek the identities of all of the other residents at Defendant's care home during Plaintiff's tenure there and the identities of their responsible parties (meaning the persons who assumed financial responsibility for the residents or who were their representatives).

The court finds Plaintiff made adequate efforts to meet and confer before filing this motion. Plaintiff sent Defendant a detailed meet and confer letter explaining Plaintiff's position, to which Defendant responded with a firm statement that it would stand by its objections and refuse production.

Discoverable information is that reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) The court finds that the interrogatories at issue are not reasonably calculated to lead to the discovery of admissible evidence. Other residents of Defendant's care home generally are not reasonably likely to be material witnesses to the care Defendant provided to Plaintiff, much less their responsible parties. To Plaintiff's argument that the other residents may be witnesses to the general levels of staffing and training at Defendant's care home, such information is much more directly discovered by other means such as discovery of Defendant's training policies, staffing records, CDPH surveys and incident reports. Further, the staffing and training that other residents may have perceived as relevant to their situations and their particular care needs is not necessarily material to the staffing and training necessary to address Plaintiff's situation and meet her particular care needs.

Plaintiff's motion is denied.

CONSUELLA DEANNA WINDSOR vs. WILLIAM VENARD
Case No. CU25-09087

Motion by Plaintiff for Leave to File First Amended Complaint

TENTATIVE RULING

The unopposed motion is granted.

Plaintiff shall forthwith file and serve on all defendants the first amended complaint as proposed.

FERNANDO CRUZ CERDA; ET AL. vs. GENERAL MOTORS, LLC
Case No. CU25-10827

Motion to Strike Civil Penalties

TENTATIVE RULING

Defendant GENERAL MOTORS, LLC moves to strike the prayer for civil penalties from Plaintiffs FERNANDO CRUZ CERDA and FEDERICO G HURTADO's complaint asserting causes of action for (1) violation of Civil Code section 1793.2, subdivision (d),